

Particulars of claim for possession
(rented residential premises)

Table with 2 columns: Name of court, Claim No., Name of Claimant, Name of Defendant. Contains details for York County Court and Family Court, Daniel Mercer, and Ivy Carleton.

- 1. The claimant has a right to possession of: 16 Willow Mews, York, YO24 3HX
2. To the best of the claimant's knowledge the following persons are in possession of the property: Ivy Carleton

About the tenancy

- 3. (a) The premises are let to the defendant(s) under a(n) Assured tenancy tenancy which began on 1 January 2024
(b) The current rent is £ £1200.00 and is payable each (week) (fortnight) (month).
(c) Any unpaid rent or charge for use and occupation should be calculated at £39.45 per day.
4. The reason the claimant is asking for possession is:
(a) because the defendant has not paid the rent due under the terms of the tenancy agreement.
(b) because the defendant has failed to comply with other terms of the tenancy.
(c) because: (including any (other) statutory grounds)

5. The following steps have already been taken to recover any arrears:
A Form 3A notice seeking possession was served on the defendant on 16 May 2026 by First Class Post. The notice expires on 17 June 2026.
6. The appropriate (notice to quit) (notice of breach of lease) (notice seeking possession) (notice seeking a demotion order) (other Form 3A notice served on 16) was served on the defendant on 16 May 2026 .

About the defendant

7. The following information is known about the defendant's circumstances:
The claimant is not aware of any further information about the defendant's circumstances beyond the matters set out in the claim papers.

About the claimant

8. The claimant is asking the court to take the following financial or other information into account when making its decision whether or not to grant an order for possession:
The claimant is a private individual landlord acting without legal representation. The claimant asks the court to take into account the sustained non-payment of rent since 1 January 2026 and the total arrears of £3600.00 now outstanding.

Forfeiture

9. (a) There is no underlessee or mortgagee entitled to claim relief against forfeiture.

or (b) _____ of _____

_____ is entitled to claim relief against forfeiture as underlessee or mortgagee.

What the court is being asked to do:

10. The claimant asks the court to order that the defendant(s):
- (a) give the claimant possession of the premises;
 - (b) pay the unpaid rent and any charge for use and occupation up to the date an order is made;
 - (c) pay rent and any charge for use and occupation from the date of the order until the claimant recovers possession of the property;
 - (d) pay the claimant's costs of making this claim.
11. In the alternative to possession, is the claimant asking the court to make a demotion order or an order suspending the right to buy?
- ☐ Yes ☒ No

Demotion/Suspension claim

This section must be completed if the claim includes a claim for demotion of tenancy or suspension order in the alternative to possession

12. The (demotion) (suspension) claim is made under:

- ☐ section 82A(2) of the Housing Act 1985
- ☐ section 6A(2) of the Housing Act 1988
- ☐ section 121A of the Housing Act 1985

13. The claimant is a:

- ☐ local authority ☐ housing action trust
- ☐ registered social landlord or a private registered provider of social housing ☒ other please specify (suspension claims only)

Private landlord

(Demotion claims only)

14. Has the claimant served on the tenant a statement of express terms of the tenancy which are to apply to the demoted tenancy?

- ☐ Yes ☐ No

If Yes, please give details:

15. The claimant is claiming delete as appropriate (demotion of tenancy) (and) (an order suspending the right to buy) because: State details of the conduct alleged and **any** other matters relied upon.

Statement of Truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

- ☒ **I believe** that the facts stated in these particulars of claim are true.
- ☐ **The Claimant** believes that the facts stated in these particulars of claim are true. **I am authorised** by the claimant to sign this statement.

Signature

Daniel Mercer

- ☒ Claimant
- ☐ Litigation friend (where claimant is a child or a patient)
- ☐ Claimant’s legal representative (as defined by CPR 2.3(1))

Date

Day

16

Month

05

Year

2026

Full name

Daniel Mercer

Name of claimant’s legal representative’s firm

If signing on behalf of firm or company give position or office held